

Calendar Line 1

Case Name: Jessica Martinez v. Hyperice Mexico Holdings, LLC et al.

Case No.: 25CV464307

This is an action for products liability and negligence brought by plaintiff Jessica Martinez (Martinez).

The original and still operative complaint, filed in April 2025, alleges two causes of action: (1) strict product liability; and (2) negligence. Both causes of action are alleged against “Defendants,” and this term is not defined in the complaint. The complaint was filed against defendants Hyperice Mexico Holdings, LLC (Hyperice Mexico), Best Buy Stores, LP (Best Buy), and Doe defendants. The only references to Doe defendants are in paragraphs 1, 4, and 5 of the complaint. The complaint alleges that Martinez purchased a “Hyperice Hypervolt Bluetooth Percussion Massage Device, Model Number 53100 038-00” from a Best Buy location in San Jose, California on December 15, 2020. Approximately two-and-one-half years later, on May 2, 2023, Martinez “dissected her vertebral artery, causing dizziness, weakness, vomiting, and an ischemic stroke” while using the device. (Complaint, ¶¶ 8-9.) There are no exhibits attached to the complaint.

Martinez filed a Doe amendment in July 2025 under Code of Civil Procedure section 474 (section 474), stating that “Plaintiffs” had “learned the true name for the defendant sued in the Complaint as Doe 1 and hereby substitute the true name of Hyperice Inc. for the fictitious name wherever it appears in the Complaint.” The name “Doe 1” does not appear anywhere in the complaint; the Doe defendants are only referred to collectively in the complaint.

At issue is a demurrer to the complaint’s first cause of action by Hyperice, Inc. (hereafter, Hyperice), which Martinez opposes.

DEMURRER - LEGAL STANDARDS

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Code of Civil Procedure section 430.60 states that “[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded.” The California Rules of Court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (Cal. Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) [“Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.”].)

The court cannot consider extrinsic evidence when ruling on a demurrer. Finally, “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.)

DISCUSSION

Code of Civil Procedure section 430.41, subdivision (a) requires the parties to meet and confer “in person, by telephone, or by video conference” before demurring. The demurring party must file a declaration with the demurrer describing the meet and confer efforts. No declaration was submitted with Hyperice’s demurrer. But because a failure to meet and confer is not a basis for overruling a demurrer, the court will consider Hyperice’s demurrer. (Code Civ. Proc., § 430.41, subd. (a)(4).)

Hyperice demurs to the first cause of action for strict product liability. Hyperice argues the first cause of action fails to state sufficient facts against Hyperice because “Plaintiff failed to ‘Doe in’ Defendant until after the applicable two-year statute of limitations (CCP section 335.1) had passed, and the matter does not ‘relate back’ to the timely filing as to co-defendant Hyperice Mexico Holdings, LLC.” (Notice of Demurrer at p. 2:7-12; see also demurrer at p. 1:6-10.) In its supporting memorandum, Hyperice argues that Martinez was never genuinely ignorant of Hyperice’s identity.

“Section 474 allows a plaintiff who is ignorant of a defendant’s identity to designate the defendant in a complaint by a fictitious name (typically, as a ‘Doe’), and to amend the pleading to state the defendant’s true name when the plaintiff subsequently discovers it.” (*McClatchy v. Coblentz, Patch, Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 371-372 (*McClatchy*)) “When a defendant is properly named under section 474, the amendment relates back to the filing date of the original complaint. (*Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176.) Section 474 provides a method for adding defendants after the statute of limitations has expired, but this procedure is available only when the plaintiff is genuinely ignorant of the facts establishing a cause of action against the party to be substituted for a Doe defendant. ‘The question is whether [the plaintiff] knew or reasonably should have known that he had a cause of action against [the defendant].’ ” (*McClatchy*, at p. 372.) “ ‘ “Ignorance of the *facts* giving rise to a cause of action is the “ignorance” required by section 474, and the pivotal question is, “did plaintiff know *facts*?” not “did plaintiff know or believe that [he] had a cause of action based on those facts?” ’ ” (*Ibid.*; see also *Organizacion Comunidad de Alviso v. City of San Jose* (2021) 60 Cal.App.5th 783, 795.)

“[A] defendant named in an action by a Doe amendment under section 474 may challenge the amendment by way of an evidence-based motion.” (*A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1067.) That includes a motion to quash service. (*McClatchy, supra*, 247 Cal.App.4th at p. 375.) Rather than bring an evidence-based motion, Hyperice has demurred.

Martinez’s complaint at paragraph 1 alleges that Martinez is ignorant of the true identity of the Doe defendants. The court must accept that allegation as true on demurrer. Contrary to what Hyperice argues, the allegations at paragraphs 8-9 of the complaint do not conclusively show that Martinez was aware of Hyperice’s identity when she filed her original complaint. On a demurrer, only the face of the pleading may be considered. It is not apparent from the face of the complaint that Martinez knew of Hyperice’s identity. At most, Martinez may have been aware. A plaintiff does not relinquish her rights under section 474 simply because she has a suspicion of wrongdoing arising from one of more facts she does know. (See *McClatchy, supra*, 247 Cal.App.4th at p. 372) “[I]f the plaintiff is actually ignorant of the defendant’s identity, the section 474 relation-back doctrine applies even if that ignorance is the result of the plaintiff’s negligence.” (*Woo, supra*, 75 Cal.App.4th at p. 177.)

Hahn v. New York Air Brake LLC (2022) 77 Cal.App.5th 895, relied on by Hyperice, is distinguishable. *Hahn* involved a motion for summary judgment, where the court could consider evidence submitted by the moving party regarding whether plaintiff was ignorant of the true identity of the Doe defendant. By contrast, Hyperice has challenged the complaint with a demurrer, meaning the court cannot consider extrinsic evidence.

Hyperice's demurrer to the first cause of action on the ground that it fails to state sufficient facts is overruled.

CONCLUSION

Hyperice's demurrer to the complaint's first cause of action is overruled.

Hyperice is ordered to file an answer to the complaint no later than July 6, 2026. (Code. Civ Proc., § 472a, subd. (d).)

The court will prepare the order.

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Calendar Line 4**Case Name:** Walter Kubon et al. v. Rosalie Guancione**Case No.:** 23CV427200

Defendant Rosalie Guancione's motion to expunge lis pendens. Notice is proper and the motion is unopposed. Failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c).) Failure to oppose a motion leads to the presumption that the non-moving party has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489.)

Background

Plaintiffs Walter and Vally Kubon filed the original complaint in this action in December 2023, alleging a single cause of action for quiet title against defendant. The court granted plaintiffs' ex parte application in January 2024 to record a lis pendens on the subject property: 560 Hobie Lane, San Jose, CA 95127, APN: 601-33-077.

Defendant moved for judgment on the pleadings related to the initial complaint, which the court granted with leave to amend. Plaintiffs filed the first amended complaint in December 2024, which impermissibly added another defendant as well as several causes of action that had not been alleged in the initial complaint. Defendant demurred to the first amended complaint, arguing among other things that plaintiffs were judicially estopped from asserting a claim to the real property because they had disclaimed any interest in the property in United States Bankruptcy Court proceedings. The court sustained defendant's demurrer in May 2025 in a detailed order. As relevant here, the court reasoned:

As Guancione points out, all of the causes of action in the FAC (including those the court has stricken on its own motion) depend upon allegations that Guancione conducted a scheme from 2015 to 2019 to take control of the Kubons' property, the subject property. (See FAC, ¶¶ 11-59.) This includes allegations that Guancione somehow orchestrated the removal of the Kubons from the subject property by armed federal agents in October 2019 (see FAC, ¶ 53-54), making it impossible for the Kubons to allege that they were unaware of alleged wrongdoing by Guancione *after* that point in time. "It is well established that in the context of a demurrer, specific allegations control over more general ones." (*Chen v. PayPal, Inc.* (2021) 61 Cal.App.5th 559, 571-572 (*Chen*).) Yet, when the Kubons filed for bankruptcy in September 2020, they did not disclose the existence of any claims or potential claims against Guancione. They also, in direct contradiction to their current allegations (see FAC, ¶¶ 3 & 12), represented to the bankruptcy court that they did not own any real property, that no one owed them money, that they had no claims against anyone other than the IRS (their counterclaim in the federal tax lawsuit), and that no creditors had claims secured by any property they owned. They also stated that they transferred the subject property in August 2019, affirming the validity of the "Deed-in-Lieu of Foreclosure." (See Request for Judicial Notice ("RJN"), Ex. B.) The Kubons received a discharge from bankruptcy based on these representations. (See Memorandum, pp. 2:4-4:22 and RJN, Exhibits A-G and J-M.)